



BHARAT HEAVY ELECTRICALS LIMITED
Transmission Business Group, NOIDA
Sub-Contracting Management
BHEL Sadan, 5th Floor
Plot No-25, Film City
Sector-16A, Noida - 201301
Distt. Gautam Budh Nagar, UP

Work Order (CW2700404)

To:
ARJIT BUSINESS CORPORATION PVT LTD 853, C P
MISSION COMPOUND OLD CIVIL LINES JHANSI, PIN-284003

Project: PGCIL HVDC Nagpur

Work Order No: CW2700404

Work Order Date: 08 Jul, 2026

WO Revision No: 0

WO Revision Date: 08 Jul, 2026

Package Type: Civil

Package Name: Civil works of Open & Closed Store
along with approach road to stores for ± 800 KV, 6000 MW HVDC
Nagpur, Maharashtra.

LOI No: CL2710181

LOI Date: 08 Jul, 2026

Currency: INR

Security Deposit: 737947

Estimated Value: 18113555.65

Value of Percentage: -18.519870 %

Original Work Order Value: 14758949

Revised Work Order Value: 14758948.69

Start Date: 12 May, 2026

Completion: 11 Oct, 2026

Latest Completion: 11 Oct, 2026

BG No: 6930IPEBG260013

BG Date: 01 Jun, 2026

BG Valid Upto: 31 Jan, 2028

BG Value: 737947.00

Remarks: NA

Package Work Order Items

Sr. No.	Description	SAC Code	Qty	Unit	Rate	Amount
1	Costruction of Open Store including all activity as per Technical Specification having document No. TBSM/Std-Spec/Open-Str/02, R02 & tender drawing.		12000.000	sqm	765.00	9180000.00
2	Construction of closed Store Type C of 200 Sqmtr (20x10 Sqm) each size including all activity as per Technical Specification having Documntent No. TBSM/Std-Spec/Cov-Str/01, R02 & tender drawing.		5.000	Nos	1214700.00	6073500.00
3	Construction of closed Store Type D of 250 Sqmtr (25x10 Sqm) each size including all activity as per Technical Specification having Documntent No. TBSM/Std-Spec/Cov-Str/01, R02 & tender drawing.		1.000	Nos	1747200.00	1747200.00
1	3.75m wide Bitumen road with earthen shoulder as per drawing and TS and including 225 mm thick WBM in three equal layers of 75 mm each including excavation, rolling, compacting etc all as per CPWD specification.		50.000	RM	2912.00	145600.00
2	All civil works for Drains construction of Section A-A including crossings if any as per technical specification and tender drawings complete in all respect with all labour and materials.		150.000	RM	1875.44	281316.22
3	All civil works for Drains construction of Section B-B including crossings if any as per technical specification and tender drawings complete in all respect with all labour and materials.		100.000	RM	3220.70	322070.43

Ramesh Kumar

Sr. No.	Description	SAC Code	Qty	Unit	Rate	Amount
4	Earthwork in excavation & filling in all types of soil and soft/disintegrated rock in open areas/nallas/channels, to the required slopes, shapes, levels, elevations and profile, including trimming of bottom and slopes of excavation, bailing out rain (dewatering), pumping, removal of slush, preparing embankments/marginal banks, loosening, dressing, spreading material in layers not exceeding 200mm, as per direction of Engineer-in-Charge, water flooding, compacting to achieve 95% consolidation at optimum moisture content, finishing etc. all complete, for all leads and lifts within leveling boundary, including disposal of surplus earth and stacking of unsuitable material within a lead of 2.0 Km beyond substation boundary, with all labour, material, tools, tackles and equipment, safeguards and incidentals, Royalty, taxes, etc. as necessary, as per drawings, specification and directions of the Engineer-in-Charge. Clearing of jungle is included in this item. (Only excavation/cutting will be measured for payment purpose.)		2650.000	cum	122.40	324360.00
5	Supply of earth (excluding rock & boulders) at site including royalty, carriage and filling in specified areas in layers not exceeding 200mm in depth, compacting under optimum moisture condition to achieve 95% of Proctor density, finishing etc. all complete, for all leads & lifts, with all labour, material, tools, tackles, equipments, safeguards & incidentals as necessary as per drawings, specification and direction of the Engineer-in-Charge.		50.000	cum	307.90	15395.00
6	Supplying, filling and compacting stone boulders mixed with sand at the site under floors, foundations, roads, cable trenches, drains, etc. in layers not exceeding 250mm thickness including royalty, carriage, ramming, watering, compacting, etc. all complete, for all leads and lift with all labour, material, tools, tackles, equipments, safeguards & incidentals as necessary as per specification and direction - of - Engineer -in- charge.		10.000	cum	1336.50	13365.00
7	Supplying, filling and compacting CNS material as per specification under floors, foundations, roads, cable trenches, drains, etc in layers not exceeding 200 mm thickness.		10.000	cum	1074.90	10749.00

Sub-Total: 18113555.65

% Above or below: -18.519870 %

Value of WO after applying above/below % : 14758948.69

Total Work Order Value: 14758948.69

Payment Terms (Add)

Term Detail	Percentage
IGST	18.00

Payment Terms (Less)

Term Detail	Percentage
Contractual Retention	5.00

Terms & Conditions

Ramish Kumar

Terms	Details
Reference Documents	i) Tender specification no.: TBSM/HVDC NAGPUR/CIVIL/STORE/TENDER/25-26, Date. 12.03.2026 ii) Your offer for above tender enquiry through E-procurement (NIC) Portal. iii) Your acceptance of Process compliance form of Business rule of Reverse Auction. iv) Your RA price confirmation submitted through letter dated 29.04.2026 subsequent to the reverse auction held on 29.04.2026. v) BHEL LOI ref. no.: CL2710204 DTD. 12.05.2026 vi) Your unconditional acceptance to LOI vide letter dated: 13.05.2026

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Terms	Details
Scope of Work	1.1.1 The scope of work under this specification is civil works of Open & closed store along with approach road to stores for ± 800 KV, 6000 MW HVDC Nagpur, Maharashtra.. The Customer is POWERGRID CORPORATION OF INDIA LTD. 1.1.2 The Civil Works under this package shall generally include, but not limited to , following: (i) Construction of Open and Closed Store (ii) Approach road to store area (iii) Drain (iv) Site Levelling of Store area if required (v) Any other work required for the project. 1.1.3 The works to be performed in the above construction includes preparation of bar bending schedules, based on the drawings released for construction and getting the same approved by the Engineer-in-charge plus the execution of the work including providing of all labour, supervision, materials, scaffolding, power, fuel, construction equipments, tools and plants, supplies, transportation, all incidental items necessary for successful completion of the work including contractor's supervision and in strict accordance with the drawings and specifications and with inspection and testing standards. The nature of work shall generally involve excavation in all type of soil/rock including dewatering, shoring, strutting, and filling under and around structures, backfilling with available excavated earth (including rock) around completed structures, disposal of surplus soil, steel/wooden ply formwork, providing necessary steel embedments and other inserts, drainage work, concreting, brickwork, flooring and finishing etc. and all other works in stores all complete as per detailed specification, drawings and directions of Engineer-in-charge. The scope of work under this specification is civil works of Open & closed store along with approach road to stores for ± 800 KV, 6000 MW HVDC Nagpur, Maharashtra. The Customer is POWERGRID CORPORATION OF INDIA LTD. The bidder shall fully apprise himself of the prevailing conditions at the proposed site, climatic conditions including monsoon patterns, local conditions and site specific parameters, soil parameters, availability of construction water & material and shall include for all such conditions and contingent measures in the bid, including those which may not have specifically brought out in the specifications. The bidder shall submit the declaration conforming knowledge about site conditions as per attached Annexure-A The material specification, workmanship and acceptance criteria shall be as per approved Standard Field quality Plan. In case, certain item is not covered in FQP, it shall be as per CPWD specification/ relevant BIS. 1.2.0 SPECIFIC TECHNICAL REQUIREMENT 1.2.1 The specific technical requirements for the execution of civil works shall be as per Standard specification (Section-2) /I.S Specification. 1.3.0 BILL OF QUANTITIES 1.3.1.1 The Bill of Quantity cum price schedule shall as mentioned. 1.3.2 The quantities indicated in the 'Bill of Quantity cum price schedule' are indicative and can vary to any extent. Contractor shall not be entitled for any claim for any such variation in the quantities. 1.3.3 The provision of Bill of Quantity cum price schedule, specifications and drawings shall be read in conjunction with each other and in case of conflict amongst them, the clarification shall be obtained from the Engineer-in-charge whose decision shall be final and binding. 1.3.4 METHOD OF MEASUREMENT: 1.3.4.1 Open and Closed Store: This item is inclusive of all works as per Technical specification of Open and Closed Store. Nothing Extra will be paid. 1.3.4.2 SITE LEVELLING WORK: The item site levelling works includes Contouring of area to be levelled as per technical specification. The final area of levelling will be decided during detailed Engineering. Mode of measurement of this item is in Cum of earthwork as per BOQ and technical specification. The contouring of the area to be levelled is in the scope as per technical specification & the rate of this is deemed to be included in quoted rates of this item. The quantity of excavation in all types of soil and soft/disintegrated rock shall be worked out by using initial and final levels. No void deduction shall be made to calculate net quantity of earth work. Only Excavation/cutting will be measured for payment purpose. The unit of measurement shall be in cubic metre. The unit rate shall include all lifts and all leads within levelling boundary. It also includes disposal of surplus earth and stacking of unusable material up the lead of 2000 meters beyond the levelling boundary. Rate of item shall include all operations specified in the respective clause of customer technical specification. 1.3.4.3 Approach Road: The measurement of bituminous road shall be made on the basis of Running meter (RM), of the top bituminous completed surface of the road and shall include all items such as earth work (excavation, disposal etc.), compaction, rolling, watering, WBM, Kerb stone, grating, shoulder etc wherever indicated complete as per drawing including premix carpet etc complete .Usage of WMM in place of WBM shall be done with approval of employer without any additional financial implication. 1.3.4.4 Drain:

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Terms	Details
	Drainage system shall be based on the standard sections & Drainage layout as per BHEL Released drawings. Drains shall be measured in running meter including culvert (if required). The rate shall include the cost of all works such as Excavation, Backfilling, PCC, Misc. Structural Steel, brickwork, screed concrete, plastering, Hume Pipe etc. as per drawings and technical specifications. The quantity of excavation in all types of soil and soft/disintegrated rock shall be worked out by using initial and final levels. No void deduction shall be made to calculate net quantity of earth work. Only Excavation/cutting will be measured for payment purpose. The unit of measurement shall be in cubic metre. The unit rate shall include all lifts and all leads within levelling boundary. It also includes disposal of surplus earth and stacking of unusable material up the lead of 2000 meters beyond the levelling boundary. Rate of item shall include all operations specified in the respective clause of customer technical specification. The quantities indicated in the 'Bill of Quantity cum price schedule' are indicative and can vary to any extent. Contractor shall not be entitled for any claim for any such variation in the quantities. The measurement of bituminous road shall be made on the basis of Running meter (RM), of the top bituminous completed surface of the road and shall include all items such as earth work (excavation, disposal etc.), compaction, rolling, watering, WBM, Kerb stone, grating, shoulder etc where ever indicated complete as per drawing including premix carpet etc complete .Usage of WMM in place of WBM shall be done with approval of employer without any additional financial implication. This item is inclusive of all works as per Technical specification of Open and Closed Store. Nothing Extra will be paid. The provision of Bill of Quantity cum price schedule, specifications and drawings shall be read in conjunction with each other and in case of conflict amongst them, the clarification shall be obtained from the Engineer-in-charge whose decision shall be final and binding. The item site levelling works includes Contouring of area to be levelled as per technical specification. The final area of levelling will be decided during detailed engineering. Mode of measurement of this item is in Cum of earthwork as per BOQ and technical specification. The contouring of the area to be levelled is in the scope as per technical specification & the rate of this is deemed to be included in quoted rates of this item. For other items, unless otherwise described the method of measurement as described in method of measurement of Building and Civil Engineering Works'-IS 1200 (Part I to XXV) latest edition of BIS shall be followed.
Contract Value	Rs. 1,47,58,949/-

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Terms	Details
Security Deposit	1 Based on contract price, total amount of security deposit works out to Rs.7,37,947/- (Rupees Seven Lakhs Thirty-Seven Thousand Nine Hundred and Forty Seven Only) 2 Bank Guarantee No: 6930IPEBG260013 dated 01.06.2026 issued by Bank Of India, Jhansi of amount ₹7,37,947/- is submitted to BHEL towards Security Deposit. 3 If the value of work done at any time exceeds the contract value, the amount of Security Deposit shall be correspondingly enhanced and the additional Security Deposit shall be immediately deposited by the Contractor or it shall be recovered from payment/s due to the Contractor. 4 The recoveries made from running bills (cash deduction towards balance SD amount) can be released against submission of equivalent Bank Guarantee in acceptable form, but only once, before completion of work, at the discretion of BHEL. 5 BHEL reserves the right of forfeiture of Security Deposit in addition to other claims and penalties in the event of the contractor's failure to fulfil any of the contractual obligations or in the event of termination of contract as per terms and conditions of the contract. BHEL reserves the right to set off the Security Deposit, against any claims of any other contracts with BHEL. 6 RETURN OF SECURITY DEPOSIT: If the contractor duly performs and completes the work in all respects to the entire satisfaction of BHEL and presents an absolute "No demand certificate" and returns properties belonging to BHEL, taken, borrowed or hired by him for carrying out the said works and furnishes performance guarantee BG in the prescribed format, Security Deposit will be released to the contractor after deducting all costs, expenses and other amounts that are to be paid to BHEL under this contract or other contracts entered into with the contractor. It may be noted that in no case the Security Deposit shall be refunded/released prior to passing of final bill. 7 No interest shall be payable by BHEL on Security Deposit or on any money due to the contractor.
Terms of Payment	1. The contractor shall be paid monthly running bill to a maximum of 95% (retaining 5% from each running bill) of value of the works actually executed on site provided the work has been executed to the satisfaction of the Engineer. From payable amount recoveries such as security deposit, income tax etc. would be made as per rule. The certificate of the Engineer regarding such approval and passing of sums so payable shall be final and conclusive against the contractor. 2. The Engineer shall after a measured bill allow and certify payment to the contractor on the basis of abstract measurement bill submitted by contractor. However, the usual recoveries would be effected from bill. 3. Any certificate relating to the work done may be modified by any subsequent interim certificates or by the final certificate and no certificate of the Engineer supporting an advance payment shall of itself be conclusive evidence that any work or materials to which it relates are in accordance with the contract. 4. All intermediate payments shall be regarded as advance against the final payment only and shall not be considered as an admission of the due performance of the contract or any part thereof in any respect of the occurring of any claim whatsoever. Such intermediate payments shall not conclude, determine or effect in any way the powers of the Engineer as to the final settlement and adjustment of the account of otherwise, or in any way vary or affect the contract. To this affect the contractor shall submit the final bill, which shall contain the complete up-to-date measurements for the total work done. 5. The conditions for the release of last 5% retention money shall be as follows: 5.1 2.5% payment shall be released along with the final bill on completion of total work as certified by BHEL site. 5.2 Balance 2.5% of payment shall be released on completion of guarantee period. However, this retention money can be released on submission of B.G. of equivalent amount valid till guarantee period. 6. The contractor shall guarantee the work under the scope of the contract for a period of 12 months from the date of start of the guarantee period as certified by BHEL site (i.e. completion of total work under the scope and or taking over by BHEL/owner), and shall rectify free of cost all defects due to faulty supply or work done. In case the contractor fails to repair/ replace the defective work within the time specified by BHEL, BHEL may proceed to undertake such repair/replace such defective work at contractor's risk and cost without prejudice to any other right and recover the sum from security deposit/BG/ any dues.

Ramesh Kumar

Terms	Details
Taxes & Duties	A All taxes (except GST), duties, charges, royalties, cess and any other levies by Central/ State/local authorities for the execution of the contract shall be borne by the contractor and shall not be payable extra. Any increase of the same at any stage during execution of the contract shall be borne by the contractor. Quoted price of the same shall be inclusive of all such requirements. B GST along with Cess (as applicable) legally leviable & payable by successful bidder as per GST Law shall be paid by BHEL, extra. Hence, bidder shall not include GST along with Cess (as applicable) in their quoted rates/ price. C Contractors have to make their own arrangement at their cost for completing the formalities, if required with relevant taxation authorities, for bringing their material, plant and machinery at site for the execution of the contract. Road permits / way bill, if required shall be arranged by the contractor. D Contractor shall furnish proof of GST registration with GSTN Portal covering the services under this contract. Registration should also bear endorsement for the premises from where the billing shall be done by contractor on BHEL for this project / work However, in case contractor submits GST Registration of a state other than the state wherein the site is located, then contractor has to submit an undertaking that contractor is not liable to take registration in the state wherein the site is located as per the provision of Place of Supply under CGST/SGST/IGST Act. BHEL will not be held responsible for any non-compliance of the Contractor in respect of GST laws as framed from time to time. E Contractor shall comply with all statutory amendment/notifications in this respect Contractor shall submit the tax invoice complying with GST Invoice Rules (Section 31 of GST Act & Rules referred thereunder). In case of raising any Supplementary Tax Invoice (Debit / Credit Note), contractor shall issue the same containing all the details as referred in Section 34 read with Section 31 of GST Act & Rules referred there under. Contractor shall comply with the Time Limit prescribed under the GST Law and rules thereof for raising the Tax Invoice D Goods and Service Tax (GST) will be reimbursed to the Contractor subject to the following conditions: - I. Submission of valid GST Compliant Tax Invoice as per the GST Invoice Rules. II. The Invoice raised by the Contractor should indicate the BHEL GST Registration Number.) III. Contractor shall upload the invoices raised on BHEL in IFF/GSTR-1 within the prescribed time as given in the GST Act IV. Invoice raised and uploaded in IFF/GSTR-1 by the Contractor should be available to BHEL in FORM GSTR-2B electronically through the common portal V. Confirmation of payment of such GST to the Government through filing of GSTR-3B of corresponding month/quarter. E The GST amount should get reflected within prescribed time limit in the GSTN for BHEL to avail the input credit. If the GST Credit is reversed/ denied/ delayed to BHEL due to non-receipt/delayed receipt of Services and/or tax invoice or due to expiry of timeline prescribed in GST law or due to any other factor for availing such Input Tax Credit (ITC) or for any other reason arising out of the act directly attributable to the Contractor, GST amount shall be recoverable from Contractor from any dues payable to the Contractor along with any interest levied/ leviable on BHEL. F Statutory variation, if any, on account of GST will be payable by BHEL at actuals on submission of documentary evidence. G TDS under Income Tax Act/ GST Act shall be deducted as per applicable rates unless Exemption certificate, if applicable, from the appropriate Authority is furnished to BHEL along with the Invoice. H New Taxes & duties (Introduced after tender opening date): If any new tax or duty is levied by the Central/State Government/Municipality/Local Authority and becomes directly applicable on items specified in the Bill of Quantities, full reimbursement shall be made subject to submission of documentation as per statute.

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Terms	Details
Over Run Compensation & Grace Period	NA
Escalation / Price Variation	NA
Overall Price Variation	The individual quantity can vary to any extent or may be deleted for which no compensation will be payable to the contractor and the rates will remain firm. Also, the rate of each item remains firm as long as the variation in the total value of work executed under the contract including extra items if any remains within plus/minus 30 percent of the contract value. In case the actual value of executed work including extra work on completion of work becomes less than 70% of the basic/original contract value than the following method shall be adopted. The actual executed value shall be raised by 7% (For arriving at the final payment against work executed) subject to the condition that total value of work executed plus increase by 7% as above shall be limited to 70% of the basic/original contract value. The rate quoted shall be firm irrespective of any upward variation in the contract price.
Project Start date	12.05.2026
Completion Schedule	11.10.2026
LD/Penalty for delay in execution	In case the contractor fails to complete the project within the time specified in the tender specification or any extension thereof subject to force majeure condition, the contractor shall be liable to pay by way of LD/Penalty a sum equal to the half percent of the contract price, per calendar week or part thereof by which the completion of the project is delayed, subject to ceiling of 10 % of the contract price. Once the maximum limit of delay is reached (i.e. 20 week of delay) BHEL may consider termination of the contract and forfeit the Security deposit without prejudice to the other remedies under the contract. Amended/ revised contract value (excluding Extra Works, Supplementary /Additional Items) shall be considered for calculating LD/ penalty.

Ramish Kumar

Terms	Details
Delay and Time Extension	If, in the opinion of the Engineer, the work is delayed - by reason of abnormally bad weather, or - by reason of serious loss or damage by fire, or - by reason of civil commotion, local combination of workmen, strike or lockout, affecting any of the trades employed on the work, or - by delay on the part of the agency or tradesman engaged by the BHEL in executing work not forming part of the contract, or - By reason of any other cause which in the absolute discretion of the Engineer is beyond the contractor's control, then in any such case, the Engineer (or higher authority) may make fair and reasonable extension in the completion dates of the individual items of work of the contract as whole. Such extension which will be communicated to the contractor by the Engineer in writing shall be final and binding on the contractor. No other claim in this respect for compensation, idle labour or otherwise howsoever is admissible. Upon the happening of any such event causing delay the contractor shall immediately give notice thereof in writing to the Engineer but shall nevertheless use constantly his best endeavour to prevent or make good the delay and shall do all that may reasonably be required to the satisfaction of the Engineer to proceed with the work. vi) In case of delay in completion of work BHEL reserve the right to grant time extension under the following options depending upon the performance of the vendor: - Time extension without levy of LD in case it is found that delay is not attributable to the Contractor. - Time extension with deduction of applicable LD in line with Liquidity Damage clause if the delay is solely attributable to the Contractor. - In case facts of delay is not settled, BHEL reserve the right to grant provisional time extension for delay in completion of total work or part thereof and running/ interim payments to the contractor will be released without deduction of LD subject to submission of additional Bank guarantee equivalent to maximum LD amount valid till completion of work under their scope and grant of final time extension. During provisional time extension period ORC/ PVC shall not be payable to the contractor. The Final Delay analysis shall be prepared on completion of the work. In case of delay is not attributable to contractor as per final delay analysis the ORC/ PVC shall be released along with the final bill without any interest charges attributable to BHEL. In case of delay attributable to contractor, LD shall be deducted for that period in line with clause "Compensation/ LD/ Penalty for delay in execution" of conditions of contract and balance ORC/ PVC (if any) shall be released along with the final bill without any interest charges attributable to BHEL. PVC/ ORC shall be governed by respective clauses in the NIT
Guarantee	The contractor shall guarantee the work under the scope of contract for a period of 12 months from date of start of guarantee period as certified by BHEL site (i.e. completion of total work under the scope and or taking over by BHEL/owner), and shall rectify free of cost all defect due to faulty supply or work done. In case contractor fails to repair/replace the defective work with in the time specified by BHEL, BHEL may proceed to undertake such repair /replace such defective work at contractor's risk and cost without prejudice to any other right and recover the sum from security deposit/ BG/ any dues
Planning of Site Activities	A detailed Bar Chart of the various activities covered under the scope of work along with site organization and man power deployment is to be prepared to suit the project completion schedule. The same shall be mutually discussed and revised, if necessary, to suit the site requirements and frontage available from time to time. The necessary inputs such as drawings, documents etc. shall be made available in due course to suit the schedule. The L2 schedule submitted by the contractor as on date is enclosed and the same shall be treated as reference schedule for execution of work.

Ramesh Kumar

Terms	Details
Quality of work	Since BHEL is an ISO 9001 Company, all the site activities are to be performed by contractor as per the requirement of the system i.e. maintaining of proper records of all materials right from their receipt at site, filling up of Field Quality Plan formats furnished by BHEL, arranging of Calibrated Test Instruments along with Calibration test Certificates etc.
Force Majure	The following shall amount to force majeure conditions: - Acts of God, Act of any Government, war, Sabotage, riots, civil Commotion, Police Action, Revolution, Flood, Fire Cyclone, Earthquake, Epidemic & other similar causes over which the contractor has no control. If the contractor suffers delay in the due execution of the contract, due to delays caused by force majeure conditions, as defined above, the agreed time of completion of the work covered by this contract may be extended by a reasonable period of time in consultation and after agreement of BHEL's clients/owner, provided that on the occurrence of any such contingency, the Contractor immediately reports to BHEL in writing the causes of delay. The Contractor shall not be eligible for any compensation on this account.

Terms	Details
Arbitration	If any dispute or difference of any kind whatsoever shall arise between BHEL and the Supplier/Vendor, arising out of the contract for the performance of the work whether during the progress of contract termination, abandonment or breach of the contract, it shall in the first place referred to GM/TBES,TS & KN800 HVDC,TBG, BHEL for amicable resolution by the parties. GM/TBES,TS & KN800 HVDC,TBG, BHEL who within 60 days after being requested shall give written notice of his decision to the contractor. Save as hereinafter provided, such decision in respect of every matter so referred shall forthwith be given effect to by the Supplier/Vendor who shall proceed with the work with all due diligence, whether he or BHEL desires to resolve the dispute as hereinafter provided or not. If after the GM/TBES,TS & KN800 HVDC,TBG, BHEL has given written notice of this decision to the party and no intention to pursue the dispute has been communicated to him by the affected party within 30 days from the receipt of such notice, the said decision shall become final and binding on the parties. In the event the Supplier/Vendor being dissatisfied with any such decision or if amicable settlement cannot be reached then all such disputed issues shall be resolved through conciliation in terms of the BHEL Conciliation Scheme 2018 as per Clause "Conciliation" of GCC. CONCILIATION Any dispute, difference or controversy of whatever nature howsoever arising under or out of or in relation to this Agreement (including its interpretation) between the Parties, and so notified in writing by either Party to the other Party (the "Dispute") shall, in the first instance, be attempted to be resolved amicably in accordance with the conciliation procedure as per BHEL Conciliation Scheme 2018. The proceedings of Conciliation shall broadly be governed by Part-III of the Arbitration and Conciliation Act 1996 or any statutory modification thereof and as provided in - "Procedure for conduct of conciliation proceedings" (as available in www.bhel.com)). Note: Ministry of Finance has issued OM reference No. 1/2/24 dated 03.06.2024 regarding "Guidelines for Arbitration and Mediation in Contracts of Domestic Public Procurement. In the said OM it has been recommended that Government departments/ Entities/agencies are to encourage mediation under the Mediation Act. 2023. The said Act has not yet been notified by the Government. Therefore, the clause "Settlement of Disputes" shall be modified accordingly as and when the Mediation Act 2023 gets notified. ARBITRATION: Except as provided elsewhere in this Contract, in case Parties are unable to reach amicable settlement (whether by Conciliation to be conducted as provided in Clause "Conciliation" herein above or otherwise) in respect of any dispute or difference; arising out of the formation, breach, termination, validity or execution of the Contract; or, the respective rights and liabilities of the Parties; or, in relation to interpretation of any provision of the Contract; or, in any manner touching upon the Contract (hereinafter referred to as the 'Dispute'), then, either Party may, refer the disputes to Arbitral Institution i.e. "India International Arbitration Centre (IIAC) Delhi" and such dispute to be adjudicated by Sole Arbitrator appointed in accordance with the Rules of said Arbitral Institution. A party willing to commence arbitration proceeding shall invoke Arbitration Clause by giving notice to the other party in terms of section 21 of the Arbitration & Conciliation Act, 1996 (hereinafter referred to as the 'Notice') before referring the matter to arbitral institution. The Notice shall be addressed to the Executive Director, TBG, BHEL, Noida, executing the Contract and shall contain the particulars of all claims to be referred to arbitration with sufficient detail and shall also indicate the monetary amount of such claim including interest, if any. After expiry of 30 days from the date of receipt of aforesaid notice, the party invoking the Arbitration shall submit that dispute to the Arbitral Institutions and that dispute shall be adjudicated in accordance with their respective Arbitration Rules. The matter shall be adjudicated by a Sole Arbitrator who shall necessarily be a Retd Judge having considerable experience in commercial matters to be appointed/nominated by the respective institution. The cost/expenses pertaining to the said Arbitration shall also be governed in accordance with the Rules of the respective Arbitral Institution. The decision of the party invoking the Arbitration for reference of dispute to a specific Arbitral institution for adjudication of that dispute shall be final and binding on both the parties and shall not be subject to any change thereafter. The institution once selected at the time of invocation of dispute shall remain unchanged. The fee and expenses shall be borne by the parties as per the Arbitral Institutional rules. The Arbitration proceedings shall be in English language and the seat and venue of Arbitration shall be Delhi. Subject to the above, the provisions of Arbitration & Conciliation Act 1996 and any amendment thereof shall be applicable. All matters relating to this Contract and arising out of invocation of Arbitration clause are subject to the exclusive jurisdiction of the Court(s) situated at Delhi. Notwithstanding any reference to the GM/TBES,TS & KN800 HVDC,TBG, BHEL for Conciliation or Arbitration herein, a. the parties shall continue to perform their respective obligations under the Contract unless they otherwise agree. Settlement of Dispute clause cannot be invoked by the Contractor, if the Contract has been mutually closed or 'No Demand Certificate' has been furnished by the Contractor or any Settlement Agreement has been signed between the Employer and the Contractor. The Mechanism of resolution of disputes through arbitration shall be available only in the cases where the value of the dispute is less than Rs. 10 Crores. In case the disputed amount (Claim, Counter claim including interest is Rs. 10 crores and above, the parties shall be within their rights to take recourse to remedies other than Arbitration, as may be available to them under the applicable laws after prior intimation to the other party. Subject to the aforesaid conditions, provisions of the Arbitration and Conciliation Act, 1996 and any statutory modifications or re-enactment thereof as amended from time to time, shall apply to the arbitration proceedings under this clause.

Ranvir Khera

Terms	Details
	In case, multiple arbitrations are invoked (whether sub-judice or arbitral award passed) by any party to under this contract, then the cumulative value of claims (including interest claimed or awarded) in all such arbitrations shall be taken in account while arriving at the total claim in dispute for the subject contract for the purpose of clause 8.2.9. Disputes having cumulative value of less than 10 crores shall be resolved through arbitration and any additional dispute shall be adjudicated by the court of competent jurisdiction. In case of Contract with Public Sector Enterprise (PSE) or a Government Department, the following shall be applicable: In the event of any dispute or difference relating to the interpretation and application of the provisions of commercial contract(s) between Central Public Sector Enterprises (CPSEs)/ Port Trusts inter se and also between CPSEs and Government Departments/Organizations (excluding disputes concerning Railways, Income Tax, Customs & Excise Departments), such dispute or difference shall be taken up by either party for resolution through AMRCD (Administrative Mechanism for Resolution of CPSEs Disputes) as mentioned in DPE OM No. 05/0003/2019-FTS-10937 dated 14-12-2022 as amended from time to time.
General	Above are the main terms and conditions of the contract. However, all other terms and conditions mentioned in our Tender Specification are applicable. Please return one copy duly signed, stamped and accepted as token of receipt and unconditional acceptance of this Work Order.
Over Run Charges	NA
Performance Bond	The contractor shall be responsible for any defects in the execution of work noticed in guarantee period of 12 months reckoned from the date of handing over of civil works. The contractor shall submit Bank Guarantee of an approved Nationalised Bank as per BHEL proforma for an amount equal to 2.5% of the contract value as performance bond to get his balance 2.5% payment released at the discretion of the engineer before release of Security Deposit as per the general conditions of contract. The performance Bank Guarantee shall remain valid up to successful completion of performance and guarantee tests of the station and taking over of the plant by BHEL/client of BHEL. Notwithstanding the provisions of any other clause(s) of General Conditions of Contract, the contractor shall continue to be responsible to execute all such works of repair, rectification and making good of defects, imperfections of other faults as may be required of the contractor in writing by the Engineer for the period as stated above.

Ranesh Kumar

Terms	Details
Power and Water	The Construction Power shall be provided at one point on chargeable basis and recovery shall be made on actuals at the rate prevailing at the time of drawl of power from RA bills as per Customer/BHEL norms. The contractor shall have to make their own arrangements, at their cost for distribution to various locations for their works including proper switch/fuse units, distribution boards, cables, poles etc. to ensure safety of men and equipment. Where required, the contractor shall employ diesel operative equipment in addition to electric operated ones to ensure timely completion of work. In case BHEL is not able to supply power, contractor has to make his own arrangement and take a separate connection for all construction works. BHEL shall not be responsible for any inconvenience caused due to any failure of lighting and power supply and no compensation for delay in works can be claimed by the contractor due to such non-supply on the grounds of idle labour, machinery or any other grounds. The contractor should ensure that the work in critical areas is not held up in the event of lighting and power breakdown and for the same he should have some stand by arrangement at his cost. In the event of breakdown in the electric supply, if the progress of work is hampered, it will be the responsibility of the contractor to step up the progress after restoration of electric supply so that over all progress of work is not affected. The contractor shall make proper arrangement of illumination at work place while working in late hours or in darkness. Unless stated otherwise in the scope, the contractor shall make his own adequate arrangement for procuring clear water to be used in works at his own cost. However, water if available may be supplied to the contractor at one point on chargeable basis and recovery shall be made on actuals at the rate prevailing at the time of drawl of water from RA bills as per Customer/BHEL norms
Law governing the contract and Court Jurisdiction	The Contract shall be governed by the Law for the time being enforced in the Republic of India. The Civil Court at Delhi having ordinary Original Civil Jurisdiction shall alone have exclusive jurisdiction in regard to all claims in respect of this contract.
Idle Labour charges	No idle labour charges will be admissible in the event of any stoppage of work resulting in the contractor's workmen being rendered idle due to any reason any time.

Ramesh Kumar
Authorized Signatory

रमेश कुमार / RAMESH KUMAR
सी. प्रबंधक (टी.बी.जी. उप सविदा) / Senior Manager (TBG-Sub Contracting)
पारेषण व्यापार समूह / Transmission Business Group
भारत हेवी इलेक्ट्रिकल्स लिमिटेड / Bharat Heavy Electricals Ltd.
बी.एच.ई.एल. सदन, प्लॉट नं. 25, सेक्टर-16ए नोएडा-201301 (उ.प्र.)
BHEL Sadan, Plot No. 25, Sector-16A, Noida-201301 (U.P.)

Name of Project :- 6000MW +/-800KV HVDC Nagpur site	
Name of Customer :- PGCIL	
Name of executing agency :- BHEL	
Name of Subcontractor :- M/S Arit Business Corporation PVT. Ltd.	
Name of Work :- Civil works of open and closed store along with approach road to Stores for +/- 800KV 6000MW HVDC Nagpur, Maharashtra	
LOI ref. CL2710181 Dated 12.05.2026	
Zero date : 12.05.2026	Dated :- 01.07.2026
Completion date :- 11.10.2026	

Work Schedule L2 for Civil works of open and closed store along with approach road to Stores for +/- 800KV 6000MW HVDC Nagpur, Maharashtra work

Sl. No.	Description of Work	unit	Scope	Completion Schedule		May-26			Jun-26			Jul-26			Aug-26			Sep-26			Oct-26	
				Start date	End Date	W2	W3	W4	W1	W2	W3	W4	W1	W2	W3	W4	W1	W2	W3	W4	W1	W2
1	Costruction of Open Store including all activity as per Technical Specification having document No. TBSM/Std-Spec/Open-Str/02, R02 & tender drawing.	sqm	12000	12-May-26	31-Aug-26																	
2	Construction of closed Store Type C of 200 Sqmtr (20x10 Sqm) each size including all activity as per Technical Specification having Documntent No. TBSM/Std-Spec/Cov-Str/01, R02 & tender drawing.	Nos	5	14-May-26	30-Sep-26																	
3	Construction of closed Store Type D of 250 Sqmtr (25x10 Sqm) each size including all activity as per Technical Specification having Documntent No. TBSM/Std-Spec/Cov-Str/01, R02 & tender drawing.	Nos	1	01-Aug-26	30-Aug-26																	
4	3.75m wide Bitumen road with earthen shoulder as per drawing and TS and including 225 mm thick WBM in three equal layers of 75 mm each including excavation, rolling, compacting etc all as per CPWD specification.	RM	50	01-Jul-26	30-Jul-26																	
5	All civil works for Drains construction of Section A-A including crossings if any as per technical specification and tender drawings complete in all respect with all labour and materials.	RM	150	01-Sep-26	30-Sep-26																	
6	All civil works for Drains construction of Section B-B including crossings if any as per technical specification and tender drawings complete in all respect with all labour and materials.	RM	100	01-Sep-26	30-Sep-26																	
7	Earthwork in excavation & filling in all types of soil and soft/disintegrated rock in open areas/nallas/channels, to the required slopes, shapes, levels, elevations and profile, including trimming of bottom and slopes of excavation, bailing out rain (dewatering), pumping, removal of slush, preparing embankments/marginal banks, loosening, dressing, spreading material in layers not exceeding 200mm, as per direction of Engineer-in-Charge, water flooding, compacting to achieve 95% consolidation at optimum moisture content, finishing etc. all complete, for all leads and lifts within leveling boundary, including disposal of surplus earth and stacking of unsuitable material within a lead of 2.0 Km beyond substation boundary, with all labour, material, tools, tackles and equipment, safeguards and incidentals, Royalty, taxes, etc. as necessary, as per drawings, specification and directions of the Engineer-in-Charge. Clearing of jungle is included in this item. (Only excavation/cutting will be measured for payment purpose.)	cum	2650	01-Aug-26	30-Aug-26																	
8	Supply of earth (excluding rock & boulders) at site including royalty, carriage and filling in specified areas in layers not exceeding 200mm in depth, compacting under optimum moisture condition to achieve 95% of Proctor density, finishing etc. all complete, for all leads & lifts, with all labour, material, tools, tackles, equipments, safeguards & incidentals as necessary as per drawings, specification and direction of the Engineer- in- Charge.	cum	50	01-Aug-26	11-Oct-26																	
9	Supplying, filling and compacting stone boulders mixed with sand at the site under floors, foundations, roads, cable trenches, drains, etc. in layers not exceeding 250mm thickness including royalty, carriage, ramming, watering, compacting, etc. all complete, for all leads and lift with all labour, material, tools, tackles, equipments, safeguards & incidentals as necessary as per specification and direction - of - Engineer -in- charge.	cum	10	01-Aug-26	11-Oct-26																	
10	Supplying, filling and compacting CNS material as per specification underfloors, foundations, roads, cable trenches, drains, etc in layers not exceeding 200 mm thickness.	cum	10	01-Aug-26	11-Oct-26																	

Prateek Kumar Ojha
Prateek Kumar Ojha
Sr. Engr./HVDC Nagpur

For-Arit Business Corporation Pvt. Ltd.

Rubel
DIRECTOR

FORMAT FOR UNCONDITIONAL ACCEPTANCE LETTER

ANNEXURE-X

**UNCONDITIONAL ACCEPTANCE TO WORK ORDER
(TO BE FURNISHED IN THE LETTERHEAD OF THE SUBCONTRACTOR)**

Ref:

Date:

To,

AGM (TBSM)
Bharat Heavy Electricals Limited,
Transmission Business Group,
Plot no- 25, Sector-16 A,
Noida-201301 (U.P.)
E-mail: akmeena@bhel.in; ramesh.kumar@bhel.in

Sub: Unconditional acceptance to Work Order for "Civil works for Open and closed store along with approach road to stores for ± 800 kV, 6000 MW HVDC NAGPUR".

W.O. No.: CW2700404, DATE: 08.07.2026

Dear Sir,

We acknowledge with thanks receipt of your W.O. No. **CW2700404, DATE: 08.07.2026** for the subject job and we hereby convey our unconditional acceptance to all the terms and conditions as laid down therein.

Thanking you,

Yours faithfully,

(Name of the subcontractor)
With official seal

Place:

Date: